

The Bihar School Examination Board Rules, 1963

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State of Jharkhand - Act

The Bihar School Examination Board Rules, 1963

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The Bihar School Examination Board Rules, 1963

Rule THE-BIHAR-SCHOOL-EXAMINATION-BOARD-RULES-1963 of 1963

Published on 1 April 1964

Commenced on 1 April 1964

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The Bihar School Examination Board Rules, 1963

Published vide Notification No. 11/R-407/63-E 1226, dated 1st April, 1964

No. 11/R-407/63-E, dated the 1st April, 1964. - In exercise of the powers conferred by sub-section (2) of Section 16 of the Bihar School Examination Board Act, 1952 (Bihar Act 7 of 1952

) the Governor of Bihar is pleased to make the following Rules the same having been previously published as required by subsections (1) of the said Section, namely :-

1.

Short title.

- These Rules may be called the Bihar School Examination Board Rules, 1963.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context :

(a)
"The Act" means the Bihar School Examination Board Act, 1952 (Bihar Act VII of 1952);

(b)
"Section" means a section of the Act;

(c)
Words and expressions used in these Rules but not defined herein shall have the meanings assigned to them in the Act.
3.

[Representation of Universities on the Board.

[Substituted by Notification No. 1/B 9-16/76 E-89, dated 5.5.1976.]

- Under the proviso to clause (c) of sub-section (1) of Section 4 of the Act, following shall be the order of rotation of the Universities to be represented on the Board :

- (a)
Patna University;
- (b)
Magadh University;
- (c)
Bihar University;
- (d)
Lalit Narayan Mithila University;
- (e)
Ranchi University;
- (f)
Bhagalpur University;
- (g)
Kameshwar Singh Sanskrit University.]

4.
Qualification of the Secretary to the Board and the terms and conditions of his office.

- The appointment of the Secretary to the Board, who shall be a whole time officer shall be made by the State Government from amongst their officers belonging to the cadre of Class I of the Bihar Education Service, possessing at least five years of teaching, inspecting or administrative experience.

(2)
The term of office of the Secretary shall be of three years, on the expiry of which he shall be eligible for re-appointment to that office for further periods not exceeding three years in aggregate:

Provided that the officer, so appointed, shall cease to hold office on reaching the age of superannuation, unless he is granted re-employment by the State Government.

(3)
In addition to the pay and allowances, admissible to him as a member of Class I of the Bihar Education Service, the Secretary shall be paid a special pay of [Rs. 150/-]

[Now see New Pay Scales.]

per month and shall be provided by the Board with a suitable rent free house for his residence. He shall be paid travelling allowance, in accordance with the rules applicable to Government servants of his class.

(4)
During the period he works as the Secretary, he shall be treated to be on deputation on foreign service terms and the Board shall make necessary contributions towards his leave and pension.

5.
Academic and vocational standards for examination.

(1)
The academic and vocational standards for the examinations, conducted by the Board, shall conform to the content and standards of attainment, specified in the curricula approved by the State Government and to the instruction regarding

methods of teaching and evaluation issued by them from time to time.

(2)

With the prior approval of the State Government the Board shall frame regulations determining levels of pass marks and marks for divisions and for the moderation of results of examinations conducted by the Board. All variations in these regulations shall require approval of the State Government.

6.

Instructions to be given by Committees of Courses to the Bihar Text Book Committee.

(1)

The Committee of Courses shall subject to the approval of the Director of Public Instruction, Bihar specify the content, presentations, illustrations etc. for the text book to be prepared by the Text Book Committee in the subject or group of subjects, as the case may be.

(2)

The Director of Public Instruction, Bihar, may require a Committee of Courses to examine and express its view on the manuscript of any text book before it is accepted for publication and may also require it to offer its comments on any proposal for revision of the existing text book on the subject or group of subjects.

7.

Departmental Examinations to be conducted by the Board.

(1)

The Board shall on such terms and conditions as may be laid down by the State Government conduct the following Departmental Examinations namely:-

(a)

Certificate in Social Education,

(b)

Diploma in Physical Education,

(c)

Certificate in Physical Education,

(d)

Short Training Course in Physical Education,

(e)

Primary Training Course in Physical Education, and

(f)

Training School Examination:

Provided that the State Government, may, by notification in the Official Gazette authorise the Board to conduct such other departmental examinations not specified or withdraw the authority given to the Board to conduct any of examinations mentioned, in this sub-rule.

(2)

The State Government may give instructions to the Board about the content as well as the academic and vocational standards of these examinations, and may modify these instructions, as and when necessary.

8.

Officers of the Board.

- The officers bearing the following designations employed under the Board, shall also be deemed to be officer of the Board within the meaning of clause (3) of Section 8, of the Act namely:

(1)

Deputy Secretary,

(2)

Budget and Accounts Officer,

(3)

Assistant Secretary,

(4)

Assistant Budget and Accounts Officer,

(5)

Audit Officer.

9.

Power of the Board in matter of creation of posts, appointment to posts under it and disciplinary action against its employees.

- [(1) the Board shall be competent to create such posts of officers and other employees as may be determined by it, provided that no post the maximum remunerations of which exceeds [Rs. 745/-]

[Substituted by Notification No. 1/B 9-16/76 E-89, dated 5.5.1976.]

per month, shall be created by the Board, without prior approval of the State Government.]

(2)

Subject to such regulations as are made by it, the Board shall make appointment to the posts of officers of the Board.

(3)

The Board shall exercise full administrative and disciplinary control on the officers and staff appointed by it.

10.

Powers of the Chairman.

- In addition to the powers and duties conferred upon him by sub-section (1) to (3) of Section 9, of the Act, the Chairman shall be the principal executive officer of the Board and shall, subject to such regulations as are made by the Board, exercise the following powers:-

(1)

He shall decide doubtful cases of admission of the candidates to examinations in conformity with the Regulations and shall report the action taken by him to the Board at its next meeting.

(2)

He shall sanction travelling allowance to himself, to the members of the Board and to the Secretary and other officers of the Board.

(3)

He shall sanction expenditure within the provision sanctioned by the Board, provided that expenditure on examination contingencies, exceeding rupees five thousand, and other contingencies, exceeding rupees one thousand on any one item shall require the sanction of the Board.

(4)

He shall sanction :

(a)

all contracts of confidential nature, and

(b)

in other case all contracts up to the value of Rs. 10,000 after the most advantageous rates have been accepted as a result of scrutiny of tenders and quotations obtained in such manner, as the State Govt, may prescribe.

(5)

He shall have powers to sanction leave to all officers and staff of the Board in accordance with the regulations to be made by the Board in that behalf.

(6)

He shall have powers to sanction posts, the pay of which does not exceed Rs. 75/- per month for a period not exceeding six months, and to make appointment thereto.

(7)

Subject to such regulations as are made by the Board, he shall make appointments to posts within the sanctioned grades and scales of pay and within the sanctioned strength of clerical staff and other servants of the Board, not being officer of the Board, and have control and full disciplinary powers over such staff and servants.

(8)

Subject to the control of the Board he shall exercise administrative control on other officer of the Board, in their day to day works.

(9)

With the approval of the Board he may delegate any of his powers to the Secretary of the Board with a view to expeditious disposal of business and efficient working, provided that the ultimate responsibility shall rest with him.

11.

Powers of the Board to make regulations.

- The Board shall in the manner provided in Section 17 of the Act, make regulations providing inter alia for the following matters, namely :-

(1)

Pay scale and other conditions of service of the officer (other than the Chairman and the Secretary) and staff of the Board.

(2)

Eligibility of persons for appointment to different posts under the Board (except those of the Chairman and Secretary).

(3)

Procedure to be followed for taking disciplinary action against officers and staff of the Board (except the Chairman and the Secretary).

(4)

Grant of leave of different kinds to the employees of the Board.

(5)

Payment of overtime allowance payable to the employees of the Board.

(6)

Honorarium, conveyance allowance, travelling allowance and all other allowances to the employees of the Board.

(7)

Employees Provident Fund.

(8)

Medical facilities to the employees of the Board.

(9)

Expenditure to be incurred on service of refreshment in the meetings of the Board and those of the Committees constituted by it.

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